

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-02

20230930-DK-BUTTERFLY-1, INC. f/k/a/ BED BATH & BEYOND INC. v.
ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

**RESPONDENTS' RESPONSE OPPOSING
COMPLAINANT'S REQUEST TO EXPAND PAGE LIMITS**

Pursuant to FMC Rules 69 and 71 and the Presiding Officer's order for expedited response, Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited ("Respondents" or "OOCL") respectfully file this, their Response Opposing Complainant Bed Bath and Beyond, Inc.'s ("Complainant" or "BBBY") Request to Expand Page Limits.

INTRODUCTION

Complainant requests a page limit expansion of 75%, asking to expand the 80-page brief limit to an astronomical 140 pages. Complainant argues good cause exists because of the volume of discovery conducted and the assertion of five causes of action. Despite discovery having begun months ago and been completed weeks ago, Complainant waited until the last moment to file its motion.¹ Expansive discovery and the existence of five causes of action does not equal good cause under the FMC's standard. This is especially true because, under the June 8, 2023 Scheduling Order, the discovery and testimony can be addressed almost entirely in Complainant's Proposed Findings of Fact, which do not count against the

¹ Given the enormous number of pages now requested, it seems unlikely that Complainant just became aware of its intention to request an expansion of the page limit.

page limit.² The Brief may, and should be limited to matters of law, using as factual support references to the Proposed Findings of Fact. Because Complainant has fallen woefully short of the good cause required to expand the Commission’s page limit, and because an expansion of the page limit would serve to impede justice rather than promote it, the motion should be denied.

ARGUMENT

As Complainant admits, page limits are imposed by Commission rule. In fact, page limits serve an important purpose in the Commission’s rules, namely, providing for “the just, speedy, and inexpensive determination of every proceeding.” FMC Rule 1; *see also* Fed. R. Civ. P. 1. Page limits—far from the denial of due process Complainant alleges them to be—are routinely used by courts and administrative agencies to manage overloaded dockets and to assist in assuring the efficient, economical, and timely resolution of disputes.

For its part, the Commission has established under FMC Rule 214(e) a generous 80-page brief limit. This is far more than the 45 pages provided under LCvR 7 for motions before the District Court for the District of Columbia and the 30 pages provided for appellants’ briefs under Rule 32(a)(7) of the Federal Rules of Appellate Procedure. But, recognizing that exceptions may exist, the Commission provides for an increase in pages “for good cause shown.” FMC Rule 214(e). The “good cause” standard is not met in routine circumstances, but only in “those *extraordinary* cases” where the existing page limit would be insufficient to address the relevant issues. *See Rose Int’l, Inc. v. Overseas Moving Network Int’l, Ltd.*, 28 S.R.R. 1128, 1129 (FMC 1999) (emphasis added).

² The June 8 Order states in pertinent part: “Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact and responses to the proposed findings of fact shall not count toward the page limit found in Rule 214(e).”

Complainants have come nowhere near the “extraordinary” standard required to show good cause. They have not shown why 80 pages is insufficient to address the relevant issues. They have certainly not shown undue hardship or manifest injustice as required for waiver under FMC Rule 10. It is Complainant’s burden to prove its case within the rules promulgated by the Commission. The asserted need for 140 pages on top of the Proposed Findings of Fact to carry its burden plainly indicates one thing: that Complaint lacks legitimate claims and needs dozens upon dozens of pages to thread a misleading narrative to hide the fact its claims are meritless. Indeed, if Complainant had the proof necessary to prove its claims, it would not need such an excessive page count to do so. If you cannot get to the point in 80 pages, exactly what is the point?

The Commission’s interest in promoting the just, speedy, and inexpensive determination of this proceeding would be frustrated by Complainant’s requested expansion. The Commission has a full docket, as shown by recent *sua sponte* extensions to decision deadlines in other pending cases, including cases before the Presiding Officer. Adding unnecessary volume to the briefs in this case would simply pile filler on to the Presiding Officer’s plate, burdening the adjudicative process and slowing the proceeding for all involved.

Further, the additional pages of Complainant’s brief are prejudicial to Respondents, who only have thirty days to respond and those days are more limited given the upcoming Christmas and New Year’s holidays.³ Should the ALJ decide to grant Complainants’ motion,

³ Complainant suggests that Respondents would not be prejudiced because they would also receive an extension to 140 pages. But that is not true for multiple reasons. Firstly, Respondent would still need to respond in the same time frame, although response to a 140-page brief obviously takes longer than a response to an 80-page brief. Complainant has almost certainly been working on its opening brief for months already, but Respondent would need to review and respond by January 10, 2025. Secondly, an almost doubled page limit would substantially increase the legal costs to Respondent.

Respondents request that the deadline for filing their answering brief be extended by an additional fourteen (14) days.

CONCLUSION

Complainant has done nothing to show that good cause exists for extension of the Commission-established 80-page brief limit. There is no reasonable basis to believe 16 pages for each of Complainant's five claims is insufficient to convey the relevant points. Moreover, extension of the page limit would prejudice the Presiding Officer and Respondents by creating dozens of additional, cumulative pages of argument to review and respond to. Respondents therefore respectfully request the Presiding Officer deny the Motion to Expand the page limit, require Complainant to abide by the Commission-established 80-page limit, and grant all such other and further relief to which Respondents are entitled.

DATED: December 4, 2024

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that on the 4th day of December 2024, a true and correct copy of the foregoing **Response Opposing Complainant's Motion to Extend Page Limits** was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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